

FORMAL COMPLAINT: ADMINISTRATIVE MALFEASANCE & PREJUDGMENT OF FACT – RE: File No. SAT-LOA-20260108-00016 (Space Exploration Holdings, LLC)

I. JURISDICTION AND STANDING This complaint is filed pursuant to **47 C.F.R. § 1.41** and the **Administrative Procedure Act (APA), 5 U.S.C. § 556(b)**. Petitioner is a party of record in the above-captioned proceeding and seeks an investigation into systemic prejudgment that threatens the integrity of the Commission's adjudicatory function.

II. GROUNDS FOR COMPLAINT: PREJUDGMENT BY CHAIRMAN BRENDAN CARR Administrative law requires that agency heads maintain a "neutral and detached" stance during pending proceedings. Chairman Carr has violated this standard through the following actions:

1. **Public Endorsement of the Application:** On February 5, 2026, the Chairman publicly "welcomed" the SpaceX proposal, echoing the Applicant's own promotional language regarding "Kardashev II-level civilization" before public comments were even received.
2. **Public Hostility Toward Opposing Parties:** On March 11, 2026, the Chairman issued a public rebuke of a petitioner (Amazon) for opposing the SpaceX application. By publicly disparaging the motives and standing of a party seeking to build the record, the Chairman has demonstrated a **Prejudgment of Fact**; specifically, that opposition to the SpaceX application is inherently obstructive or without merit.
3. **Violation of the "Closed Mind" Test:** Under established APA standards, an official must be disqualified if they have a "closed mind" on a critical fact. The Chairman's public statements indicate he has already determined the outcome of this proceeding in favor of the Applicant.

III. GROUNDS FOR COMPLAINT: ADMINISTRATIVE MALFEASANCE BY SPECIAL COUNSEL As memorialized in **Notice of Ex Parte #PC0114415**, the Space Bureau's Special Counsel has implemented the Chairman's apparent preference by:

1. **Intentional Exclusion of Evidence:** Refusing to enter a timely, notarized physical filing (delivered Feb. 17, 2026) into the record, thereby creating an artificial 40-day gap in the Petitioner's participation.
2. **Refusal of Regulatory Remedy:** Declining to exercise waiver authority under **47 C.F.R. § 1.3** during a documented system outage, effectively prioritizing a technical "preference" over the **Due Process** of a citizen.

IV. REQUESTED ACTION: FINDING OF IRREMEADIABLE BIAS The evidence of Prejudgment of Fact by Chairman Carr is not a mere procedural error; it is a fundamental breach of the **Administrative Procedure Act's** requirement for an impartial hearing. Petitioner requests:

1. **A Formal Finding of Prejudgment:** That the OIG issue a determination that Chairman Carr's public advocacy for the Applicant has created an "irremediable bias" that cannot be cured by simple recusal.
2. **Referral for Ethical Violation:** A referral to the **Office of Government Ethics (OGE)** to determine if the Chairman's conduct constitutes a violation of **5 C.F.R. § 2635.101**, which mandates that employees "endeavor to avoid any actions creating the appearance that they are violating the law or ethical standards."
3. **Vacatur of Affected Actions:** That any Bureau-level decisions made under the Chairman's public "guidance" (including the refusal to enter Petitioner's notarized filing into the record) be vacated as the "fruit of a poisonous tree."
4. An audit of the Space Bureau's docket management to ensure the immediate restoration of all missing or "obscured" filings, as also noted in the **Certificate of Document Integrity (PC0114405)**.

V. CONCLUSION: THE NECESSITY OF RESIGNATION The integrity of the Federal Communications Commission relies on the public's belief that the regulatory process is not "pre-cooked" for favored applicants. Chairman Carr's public hostility toward opposing parties and his simultaneous "cheerleading" for SpaceX have shattered that belief.

When a presiding official has a "closed mind" on the merits of a pending multi-billion-dollar application, they no longer possess the moral or legal authority to lead the proceeding. To preserve the standing of the Commission and ensure the "whole record" requirement of **5 U.S.C. § 706** is met, the Chairman's continued participation is untenable. Petitioner asserts that the only sufficient remedy to restore the integrity of File No. SAT-LOA-20260108-00016 is the immediate resignation of the Chairman from all matters related to this proceeding, or a full resignation from the Commission to prevent further infection of the federal regulatory process.

Respectfully submitted,

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